

that a 5/8" needle caused or could have caused the alleged retinal detachment or any of Dr. Bachir's injuries.

The moving defendants fail to cite *Powell v. Kleinman* (2007) 151 Cal.App.4th 112, where the Court of Appeal, Fifth District, on summary judgment, stated that while a defendant's expert's declaration has to be detailed and with foundation in order to *obtain* a summary judgment, a plaintiff's expert's declaration in *opposition* to a summary judgment motion does not have to be detailed and is entitled to all favorable inferences. (*Id.* at p. 125.) The *Powell* court found that when the expert doctor's declaration was given all favorable inferences, it contained an explanation as to causation. Since it disclosed the existence of a triable issue of fact, the expert opinion precluded summary judgment based on the issues of breach of the duty of care and causation, and the appellate court reversed the summary judgment. (*Powell, supra*, 151 Cal.App.4th at pp. 130-131.) The appellate court found even "obtuse" declarations are sufficient to oppose a summary judgment motion:

However obtuse [the expert's] declaration may appear, as a party opposing summary judgment, [the plaintiff] is entitled to *all favorable inferences* that reasonably may be derived from it, which includes a reading of the declaration to state that [the plaintiff's] injuries were caused by [the defendant doctor's] conduct, which conduct fell below the applicable standard of care.

(*Id.* at p. 129, italics original.)

On balance, the court finds that Dr. Novak's declaration raises a triable issue of material fact as to standard of care and causation. Therefore, the court denies the motion by Dr. Etiz and Anesthesia Consultants of Fresno for summary judgment.

Plaintiff's Evidentiary Objections

The court overrules plaintiffs' evidentiary objections.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 07/27/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Hamoy v. Alkobadi***
Superior Court Case No. 25CECG04785

Hearing Date: July 29, 2026 (Dept. 501)

Motion: By Plaintiffs to Substitute Christine Calderon as Successor in Interest after the Death of Plaintiff Frank Calderon

If oral argument is timely requested, it will be entertained on Thursday, July 30, 2026, at 3:00 p.m. in Department 501.

Tentative Ruling:

To deny, without prejudice. (Code. Civ. Proc., § 377.32, subd. (c).)

Explanation:

Plaintiff Christine Calderon ("Plaintiff") moves to have Plaintiff substituted in as successor in interest to plaintiff Frank Calderon due to the death of Frank Calderon under Code of Civil Procedure section 377.31.

Code of Civil Procedure section 377.31 states, "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Code of Civil Procedure section 377.32 states in pertinent part, "(a) The person who seeks...to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration...(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration."

Plaintiff fails to attach a copy of Frank Calderon's death certificate to the submitted declaration as required by Code of Civil Procedure section 377.32, subdivision (c). Plaintiff provides a factual explanation why Plaintiff is unable to acquire a copy of Frank Calderon's death certificate at this time. (Christine Calderon Decl., ¶¶ 5-9) However, the death certificate is a statutory requirement of Code of Civil procedure section 377.32, subdivision (c). Accordingly, the motion is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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